

23CMCV01412 23CMCV01412

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-21

Motion: DEFENDANT AIR DISTRIBUTION USA, INC'S MOTION TO DEEM ADMISSIONS ADMITTED [TENTATIVE]
ORDER RE: DEFENDANT AIR DISTRIBUTION USA, INC'S MOTION TO COMPEL FURTHER RESPONSES

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Case Number: 23CMCV01412 Hearing Date: August 21, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

ROSE ML INC.,

Plaintiff,

vs.

AIR

DISTRIBUTION USA INC, et al.,

Defendants.

AIR

DISTRIBUTION USA INC.,

Cross-Complainant,

vs.

ROSE ML

INC., et al.,

Cross-Defendants.

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CASE NO: 23CMCV01412

[TENTATIVE]

ORDER RE: DEFENDANT AIR DISTRIBUTION USA, INC'S MOTION TO DEEM ADMISSIONS
ADMITTED

[TENTATIVE]

ORDER RE: DEFENDANT AIR DISTRIBUTION USA, INC'S MOTION TO COMPEL FURTHER
RESPONSES

Dept.

A

DATE:

August 21, 2026

TIME:

8:30 A.M.

Complaint:

08/30/2023

FAC:

08/30/2023

Cross-complaint:

09/19/2023

SACC:

04/08/2026

Trial:

11/09/2026

A. Motion to Deem Requests for Admissions Admitted

MOVING PARTY: Cross-Complainant

Air Distribution USA, Inc.

RESPONDING PARTY: Cross-Defendants

Rose ML, Inc. and Sal Haddadin

1.

Background

This is an

action arising from an alleged breach of contract. The complaint alleges that defendants Air Distribution USA, Inc. and Robert Maneson (collectively, “Defendants”) entered into an agreement with plaintiff Rose ML, Inc. (“Rose”) not to sell certain products except to certain persons or under certain circumstances, and that Defendants breached this agreement.

Defendant Air

Distribution USA, Inc. (“Air Distribution”) filed a cross-complaint against Rose and cross-defendants Sal Haddadin; Alfa Distribution, Inc. (“Alfa”); and Corona Wholesale, Inc (“Corona”). In the cross-complaint, Air Distribution alleges that Alfa and Corona are alter egos of Haddadin. Air Distribution alleges that Rose and Haddadin failed to pay for \$3,158,685.65 worth of tobacco products delivered to them by Air Distribution.

2.

Discussion

a. Motion to

Deem Admissions Admitted

Cross-Defendant Air Distribution moves to deem

Requests for Admissions (set two) served on Cross-Defendants Rose ML and Haddadin, admitted.

Air Distribution contends that Cross-Defendants

failed to provide responses. Cross-Defendants in opposition concede to the lack of responses, but represent an intent to respond before the hearing date, with

notice to the court in a later supplemental declaration of counsel.

Cross-Defendant in reply represents no responses were provided at the time of the filing of the reply.

The motion was continued from May 19, 2026, to August 21, 2026. On August 7, 2026, attorney Moore filed a supplemental declaration representing service of responses to request for admissions (set two) on May 15, 2026 (three days after the filing of the reply). The declaration lacks copies of the purported responses.

b. Standard

A party may move to deem admissions admitted upon the failure to timely serve responses to requests for admissions. (Code Civ. Proc., §§ 2033.280.) “If the party manages to serve its responses before the hearing, the court has no discretion but to deny the motion. But woe betide the party who fails to serve responses before the hearing.” (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 776.)

c. Responses

The court accepts the declaration of Thomas Moore under penalty of perjury as to service of the responses. The motion to deem admissions admitted is therefore denied.

d. Sanctions

Air Distribution requests monetary sanctions against Respondents in the total amount of \$4,012.50, based on attorney Kina Wong's hourly rate of \$450 for 2.5 hours spent preparing the motion and an estimated 2 hours reviewing opposition, preparing reply and attending the hearing. It also seeks attorney Colin R. Higgins' hourly rate of \$795 across one and one half hours spent also preparing and revising the motion, and an anticipated one hour in connection with the opposition and reply.

“The court shall impose a monetary sanction under Chapter 7 against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response..., unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of

the sanction unjust.” (Code Civ. Proc. § 2031.320, subd. (b).)

Code of Civil Procedure section 2023.030

provides that, “[t]o the extent authorized by the chapter governing any particular discovery method . . . , the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose . . . [monetary, issue, evidence, or terminating] sanctions against anyone engaging in conduct that is a misuse of the discovery process” Code of Civil Procedure section 2023.010 provides that misuse of the discovery process includes, but is not limited to, failing to respond or to submit to an authorized method of discovery. California Rules of Court, rule 3.1348, subdivision (a) states: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.”

Monetary

sanctions shall constitute reasonable expenses, including attorney’s fees incurred as a result of the sanctionable conduct. (Code Civ. Proc., § 2023.030, subd. (a).) Monetary sanctions are authorized in connection with a motion to compel compliance with a motion to deem sanctions admitted. (See Code of Civ. Proc. § 2033.290, subd. (d).) The court imposes sanctions on any party that serves responses only after the filing of the motion. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408–409.)

The court finds the requested hourly rates reasonable. The court finds the requested hours to be unreasonable for such a straightforward motion, particularly in light of the absence of any reply. The court will reduce sanctions accordingly. The court will therefore grant monetary sanctions against Respondents in the total amount of \$2,145.00 representing three hours by attorney Kim and 1 hour by Higgins.

B. Motion to Compel Further Responses to Discovery

MOVING PARTY: Defendant

Air Distribution USA, Inc.

RESPONDING PARTY: Plaintiff

Shisha Aroma, Inc.

Defendant

Air Distribution moves to compel further responses from Plaintiff Shisha Aroma, Inc. (Shisha) on Form Interrogatories (set one), number 9.2; Special Interrogatories (set one), numbers 43-44, 46-47, 50-51, 53-57, and 72; and, Request for Production of Documents (set two), numbers 46 and 64.

Form

Interrogatory 9.2, Special Interrogatories 43, 44, and Requests for Production 46, requests all address varying forms of financial information related at least in part to the damages claim, which Plaintiff maintains is the subject matter of expert witness opinion. Special Interrogatories 46, 47, 50, 51, 53, 54, 55, 56, 57, and 72 also seek financial information, but the responses only include form of question, previously produced objection, relevance, vexation and harassing, and/or overbroad objections with an additional privacy objection on numbers 54, 55. Request number 64 is objected to on grounds of premature discovery into net worth without any leave from the court to conduct discovery on the basis of punitive damages. Air Distribution contends the objections lack merit and Air Distribution remains entitled to the discovery in order to prepare its defense of the action.

Notwithstanding

the objections, Shisha in opposition only challenges any discovery on the basis of premature expert discovery relative to the sought after financial information. Shisha also cites to the pending special motion to strike (Anti-SLAPP) motion which suspends discovery pending resolution of the motion.

Air

Distribution in reply requests the court continue the hearing until on or after hearing on or after the special motion to strike scheduled for the August 25, 2026. Air Distribution otherwise challenges any necessity of expert witness testimony, and maintains the subject matter is discoverable.

b.

Standard

A party may move for further responses to interrogatories, requests for document production, requests for admissions where "(1) An answer to a particular request is evasive or incomplete. (2 or 3) An objection to a particular request is without merit or too general." (Code Civ. Proc., §§ 2030.300, subd. (a), 2031.310, subd. (a), 2033.290, subd. (a).)

Any motion to compel further responses requires a meet and confer declaration under Code of Civil Procedure section 2016.040.

c.

Leave to Conduct Discovery

On

May 14, 2026, Air Distribution filed its special motion to strike the seventh and eighth causes of action in the complaint of Rose ML and Shisha Aroma, Inc. A discovery stay was automatically imposed on the action between the parties to the instant motion. (Code Civ. Proc., 425.16, subd. (g).)

On

June 2, 2026, Plaintiffs filed their motion for leave to conduct limited discovery against Air Distribution for purposes of opposing the anti-SLAPP motion. Air Distribution also filed a motion to compel compliance with a deposition subpoena as to third party T&M Automotive Inc. (T&M). On July 14, 2026, the court granted partial leave to conduct discovery as to the unrelated Air Distribution cross-complaint regarding discovery on T&M based on a finding that the sought after discovery in the cross-complaint insufficiently or in no way relates to the pending special motion to strike. The court also granted Plaintiffs' motion for leave to conduct discovery related to the defense of the special motion to strike "only as to the production of unredacted copies of the letter(s) underlying Plaintiffs' complaint and Defendants' anti-SLAPP motion, including the identity of the recipients therein identified."

Nothing in the July 14, 2026, order in any way granted

Air Distribution leave to continue with discovery as to any defense of the complaint, including the causes of action challenged in the anti-SLAPP/special motion to strike. While it remains unclear as to whether the subject discovery in any way relates to the two challenged causes of action, discovery, including motions to compel further responses, remain subject to the stay pending the hearing of the special motion to strike which was scheduled for August 25, 2026, but which the court hereby continues to September 8, 2026 at 8:30 a.m. to be heard with Plaintiff's Motion for Leave to File Under Seal.

The court therefore continues the hearing on the motion to September 8, 2026, 8:30 a.m. in Department A.

C.

CONCLUSION

Based on the foregoing, the court DENIES Defendant Air Distribution USA, Inc.'s motion to deem requests for admissions admitted. The court GRANTS Air Distribution's request for monetary sanctions jointly and severally against Defendants Rose ML, and Haddadin, and counsel, in the amount of \$2,145.00, to be paid to Air Distribution USA, Inc. within 30 days.

Defendant Air Distribution USA, Inc.'s motion to compel further responses to Form Interrogatories, Special Interrogatories, and Request for Production of Documents is continued to September 8, 2026, 8:30 a.m. in Department A.

Air Distribution is ordered to give notice.

DATED: August 21, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court